

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:	)	Docket Nos.
Jane Martin	)	2023-144, 2023-145,
License No. 068.0131439	)	2023-146, 2023-147

STIPULATED VOLUNTARY SURRENDER OF LICENSE AND ORDER

NOW COME the State of Vermont and Respondent Jane Martin, by and through her counsel, Shireen T. Hart with Primmer Piper Eggleston & Cramer PC, who hereby stipulate and agree as follows:

Board Authority

1. The Vermont State Board of Allied Mental Health Practitioners (the "Board") has authority to issue warnings or reprimands; suspend, revoke, limit, or condition current licenses; or prevent the renewal of lapsed licenses if, after disciplinary hearing, the Board finds that the Respondent has engaged in unprofessional conduct. 3 V.S.A. §129(a); 3 V.S.A. §129a; 3 V.S.A. §814(d); 26 V.S.A. Chapter 65; the Administrative Rules of the Board of Allied Mental Health Practitioners; and the Rules of the Office of Professional Regulation ("OPR").

Alleged Facts and Violations

2. Jane Martin ("Respondent") of Underhill, Vermont is licensed by the State of Vermont as a Clinical Mental Health Counselor under license number 068.0131439. The license was first issued on July 11, 2017 and expires on January 31, 2025.
3. Respondent is a solo practitioner providing mental health services in Underhill, Vermont.

2021 Complaint

4. In February 2021, Respondent initiated contact with an individual ("Mother") about Mother's teenage daughter ("Daughter").
5. Neither Mother nor Daughter was a client of Respondent.
6. Respondent had not met Mother or Daughter.
7. Respondent initiated contact with Mother because Respondent had received information from two concerned teenagers, who were Daughter's friends, reporting concerns about Daughter – restricted eating, past suicide attempts, cutting, a dissociative episode, and mood swings.

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8. Respondent also received information from Daughter's friends that Daughter would not seek help from Mother for various reasons.
9. Due to Respondent's treating relationship with one of the Daughter's friends, Respondent believed the information she received from Daughter's friends and was concerned about Daughter's wellbeing, though she was not concerned that Daughter was currently suicidal.
10. Prior to directly contacting Mother, Respondent initiated contact with Daughter's School Counselor in early February 2021 and expressed concern for Daughter based on information Respondent received from Daughter's friends. Respondent was hoping to avoid contacting Mother directly.
11. The School Counselor indicated she would follow up with Mother, but, during Respondent's last point of contact with the School Counselor, the School Counselor told Respondent she had not gotten confirmation from Mother that she had arranged for Daughter to see a therapist.
12. On February 22, 2021, Respondent initiated contact directly with Mother by email as she was not satisfied that Daughter would be evaluated by a therapist. Daughter's friends told her that Mother had indicated they were going to handle this as a family and not through a therapist.
13. In an interview with OPR's investigator, Respondent stated she contacted Mother and spoke with Mother because she believed she would not need to make a report to the State of Vermont's Department of Children and Families ("DCF") if Mother required Daughter to be evaluated by a therapist.
14. Respondent's February 22, 2021 email to Mother stated:

Hello [Mother].
I am a local psychotherapist, and I need to speak with you about [Daughter].
I know [School Counselor] has been connecting with you, but you and I need to speak together.
Please know that I'm a mom (grandmother at this point!), and I've had three teens of my own, plus I work with many many teens, so I am just wanting to help you.
Would you be available to speak tomorrow?

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15. Respondent signed the email "Jane Martin, LPC, LCMHC."
16. The signature line of Respondent's unsolicited email also contained Respondent's address, cell phone number, website address, email address, a "Click here to order" link for a book Respondent wrote called "Kids: An Owner's Manual," and the following quote:

Someday, after we have mastered the winds, the waves, the tides, and gravity, we shall harness for the divine the energies and the power of love.

And then, for the second time in the history of the world, man will have discovered fire

-Teilhard de Chardin

17. Mother responded to the email the same day, and, through an email exchange, Respondent and Mother arranged to speak.
18. Respondent and Mother did speak by phone on February 28, 2021.
19. During the February 28, 2021 conversation, Respondent communicated to Mother the observations about Daughter that had been shared with her by Daughter's friends.
20. During the conversation, Respondent informed Mother that Respondent was a mandated reporter and was doing Mother a courtesy by coming to Mother directly rather than notifying DCF.
21. During the conversation, Respondent provided Mother with information about how to locate a therapist and told Mother that, once she found a therapist for Daughter and notified Respondent, Respondent would be satisfied that a report to DCF was not warranted.
22. During the conversation, Respondent told Mother that Respondent would not contact DCF if the situation was resolved to Respondent's satisfaction.
23. In a final email to Mother on March 4, 2021, Respondent stated in part:

I imagine that this situation feels really hard for you, and I imagine especially that the element of taking away your free choice in how to raise your daughter would feel really violating. That matters to me very much, and I am doing my best to mitigate that.

Also, I'm in the position of being required to report – I even checked in anonymously with the Crisis Center and [DCF] to see if I have to and I do.

I know [Mother's friend] wants me to just drop it because of trusting her and her credentials, but that isn't really something that allows me to drop it.

I'm hearing from [Mother's other friend] that the whole thing being unresolved is stressful, whereas I thought it would make more ease for you, and if that's true, that makes sense to me, so I'd like to resolve this one way or the other today. Could you let me know what you'd rather me do? I could call [DCF] tonight, or if you'd rather, you can let me know that you are moving forward to getting a therapist for her. I do

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know that this can take a week or two sometimes, but if I know you are working on it, that's fine. I just need to know that you are.

I'm wondering too, if there are any concerns you have about that which I might address? Just checking to make sure you know it's free, it would be on zoom, there isn't anything like compelling you to use drugs. From my understanding, it's just a discussion one or two times probably, unless she wants to continue because of her free choice.

Also, do you have any questions about what [DCF] does? I could answer what I do know, and if I don't know, I can find out anything you are wondering.

24. Mother did not respond to Respondent's final email.

25. Respondent made a DCF report on March 8, 2021.

2023 Complaint

26. Between October and December 2022, Respondent provided counseling services to a client ("Client").

27. Client sought counseling services to help her improve her relationship with her teenage daughter, of whom she had sole legal custody.

28. Client's daughter lived part-time with Client and part-time with Client's ex-husband.

29. Respondent met with Client alone for multiple sessions, met with Client and Client's daughter for multiple sessions, and also met alone with Client's daughter for multiple sessions.

30. In early January 2023, Client messaged Respondent that she was discontinuing family therapy with Respondent because it was not a good fit.

31. In response, on January 10, 2023, Respondent replied, in part: "I hope you can find a way to come into a respectful relationship with her somehow. Best Wishes, Jane."

32. In January 2023, Client was engaged in a 90-day mediation period to resolve custody issues with her ex-husband.

33. On January 31, 2023, Respondent authored a letter addressed to "To Whom It May Concern" and sent it to either the mediator or Client's ex-husband's attorney, or both.

34. Respondent did not inform Client that she was sending the letter, nor did she ask Client for her consent to send the letter.

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35. The full text of the letter stated:
- I am writing on behalf of [Client's daughter], who I saw therapeutically and with both of her parents this past year. I would like to offer my professional opinion that it would be in [Client's daughter]'s best interest to live with her father, and for him to have full custody. I would hope that any visitation with her mother would be only with [Client's daughter]'s full consent and not required of her in any way.
- I have strong reasons for this opinion, but unless more detail is needed to ensure that [Client's daughter] is fully in the custody of her father, I would prefer to respect the privacy of everyone involved. If more is needed please send a subpoena and I will be happy to cooperate.
36. When explaining to OPR Investigator Petralia her reason for sending the letter into the mediation proceedings, Respondent claimed that she called DCF about reporting Client for emotional abuse but decided after that call that the "best way to help [Client's daughter] and [Client] was to support her dad getting full custody." When Respondent had contacted DCF, the person with whom she spoke told her that because there was no alleged physical abuse, it was very unlikely they would be able to prove emotional abuse.

Violation One: 3 VSA 129a(b)(2) Failure to conform to essential standards of acceptable and prevailing practice.

37. Paragraphs 2 through 36 above are incorporated herein.
38. Vermont law requires Licensed Clinical Mental Health Counselors to conform to the essential standards of acceptable and prevailing practice.
39. The Administrative Rules of the Board of Allied Mental Health Practitioners ("ARAMH") provide that the ethical codes of the National Board for Certified Counselors ("NBCC") and the American Counseling Association ("ACA") establish the standard of practice and fitness within the Allied Mental Health professions. *See* ARAMH Rule 6.6.
40. An NBCC Directive provides: "NCCs [National Certified Counselors] recognize that their behavior reflects on the integrity of the profession as a whole, and thus, avoid actions which can reasonably be expected to damage trust." NBCC 2016 Code of Ethics ("NBCC Code") at p.6.
41. Paragraphs 2 through 25 above demonstrate that Respondent failed to conform to essential standards of acceptable and prevailing practice by taking actions that could reasonably have been expected to damage trust, namely:

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Directly contacting Mother without consent and saying she was considering reporting Mother to DCF, but would not do so if Mother brought Daughter to a therapist, as Respondent had suggested.

42. The acts, omissions, and/or circumstances described above constitute grounds for discipline because Respondent has engaged in unprofessional conduct in violation of 3 V.S.A. §129a(b)(2).

Violation Two: 3 V.S.A. §129a(a)(26) Failing to maintain professional boundaries.

43. Paragraphs 2 through 36 above are incorporated herein.
44. In Vermont, a Licensed Clinical Mental Health Counselor must maintain professional boundaries.
45. Paragraphs 3 through 25 above demonstrate that Respondent failed to maintain professional boundaries with Mother and Daughter.
46. Paragraphs 26 through 36 demonstrate that Respondent failed to maintain professional boundaries when she provided her professional opinion in the custody mediation process of her former Client.
47. The acts, omissions, and/or circumstances described above constitute grounds for discipline because Respondent engaged in unprofessional conduct in violation of 3 V.S.A §129a(a)(26).

Understandings

48. This Stipulation is neither an admission of liability by Respondent nor a concession by the State of Vermont that its charges are not well-founded. To avoid delay, uncertainty, inconvenience, and the expense of protracted litigation, the Parties enter this full and final Stipulation pursuant to these Understandings and the Order below. Respondent does not dispute that the State may be able to prove these charges by a preponderance of the evidence if this matter proceeds to a merits hearing.
49. Respondent understands that the Board must review and accept the terms of the Stipulated Voluntary Surrender of License and Order. If the Board rejects any portion, the entire Stipulated Voluntary Surrender of License and Order shall be null and void.
50. Respondent specifically waives any claim that any disclosures made to the Board during review of this Stipulation have prejudiced Respondent's right to a fair and impartial hearing if this Stipulation is not accepted and proceeds to a hearing on the merits before the same Board.
51. Respondent has read and reviewed this entire document and agrees it contains the entire agreement between the parties.

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52. Respondent is not under the influence of any drugs or alcohol at the time of signing this Stipulated Voluntary Surrender of License and Order.
53. Respondent voluntarily enters into this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this Stipulated Voluntary Surrender of License and Order.
54. Respondent voluntarily waives the right to a contested hearing before the Board and waives any right to appeal from this Stipulated Voluntary Surrender of License and Order.
55. Respondent desires to voluntarily surrender her license and agrees the Board may enter the Acceptance of Voluntary Surrender and Order set forth below.

ACCEPTANCE OF VOLUNTARY SURRENDER AND ORDER

Based on the Stipulation above, it is **ORDERED AND ADJUDGED** as follows:

- A. The Board of Allied Mental Health Practitioners hereby **ACCEPTS** Respondent's **VOLUNTARY SURRENDER** of her LCMHC license.
- B. Any future application for licensure shall be subject to the licensing requirements of that particular profession. If a future application for licensure in the State of Vermont is approved, that license shall be **CONDITIONED** pursuant to whatever terms are found to be reasonable at the time of Respondent's application for licensure, taking into account the facts above.
- C. This Stipulated Voluntary Surrender of License and Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. § 129(a).
- D. This Stipulated Voluntary Surrender of License and Order will remain part of Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

AGREED TO:

STATE OF VERMONT
SECRETARY OF STATE

Dated: 6/5/24

By: *William Doyle*
State Prosecuting Attorney

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855-20-3402

Dated: 6/5/24

RESPONDENT

By: *Jane Martin*
Jane Martin

APPROVED AS TO FORM:

Dated: June 5, 2024

COUNSEL FOR RESPONDENT

By:

Shireen T. Hart
Shireen T. Hart

APPROVED AND SO ORDERED:

Dated: 6/20/24

VERMONT BOARD OF ALLIED
MENTAL HEALTH PRACTITIONERS

By:

Chairperson
Chairperson

Date of Entry: 6/21/24

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Jane Martin	)	2023-144, 2023-145
License No. 068.0131439	)	2023-146, 2023-147

SPECIFICATION OF CHARGES

NOW COMES the State of Vermont and hereby makes the following Charges against Respondent Jane Martin:

Board Authority

1. The Vermont State Board of Allied Mental Health Practitioners (the "Board") has authority to issue warnings or reprimands; suspend, revoke, limit, or condition current licenses; or prevent the renewal of lapsed licenses if, after disciplinary hearing, the Board finds that the Respondent has engaged in unprofessional conduct. 3 V.S.A. §129(a); 3 V.S.A. §129a; 3 V.S.A. §814(d); 26 V.S.A. Chapter 65; the Administrative Rules of the Board of Allied Mental Health Practitioners; and the Rules of the Office of Professional Regulation ("OPR").

Statement of Facts

2. Jane Martin ("Respondent") of Underhill, Vermont is licensed by the State of Vermont as a Clinical Mental Health Counselor under license number 068.0131439. The license was first issued on July 11, 2017 and expires on January 31, 2025.
3. Respondent is a solo practitioner providing mental health services in Underhill, Vermont.

2021 Complaint

4. In February 2021, Respondent initiated contact with an individual ("Mother") about Mother's teenage daughter ("Daughter").
5. Neither Mother nor Daughter were clients of Respondent.
6. Respondent had not met Mother or Daughter.
7. Respondent initiated contact with Mother because Respondent had received information from two concerned teenagers, who were Daughter's friends, claiming that Daughter had a previous history of suicide attempts, an eating disorder and other symptoms/trauma.

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8. Respondent also received information from Daughter's friends that Daughter would not seek help from Mother for various reasons.
9. Respondent believed the information she received from Daughter's friends and was concerned about Daughter's wellbeing, though she was not concerned that Daughter was suicidal.
10. Prior to directly contacting Mother, Respondent initiated contact with Daughter's School Counselor in early February 2021 and expressed concern for Daughter based on information Respondent received from Daughter's friends.
11. The School Counselor did not share any information with Respondent, but instead listened to Respondent's concerns and indicated she would follow up on them.
12. After the initial conversation between Respondent and the School Counselor, Respondent emailed the School Counselor asking if the counselor had made contact with Mother, to which the counselor responded that she had made contact with Mother.
13. Respondent emailed the School Counselor again, approximately a week later, and asked the School Counselor if the counselor would ask Mother if she had gotten a therapist for Daughter.
14. On February 17, 2021, School Counselor reassured Respondent that School Counselor had made contact with Mother and also indicated that no additional information could be shared with Respondent without an authorization.
15. On February 22, 2021, Respondent emailed School Counselor again; however, School Counselor was away on vacation so Respondent received an out-of-office response.
16. Between the beginning of February and February 22nd, as School Counselor indicated to Respondent, School Counselor and Mother communicated multiple times.
17. On February 22, 2021, Respondent initiated contact directly with Mother by email without Mother's prior knowledge or consent.
18. In an interview with OPR's investigator, Respondent stated she contacted Mother and spoke with Mother because she believed she would not need to make a report to the State of Vermont's Department of Children and Families (DCF) if Mother required Daughter to go to therapy.

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19. Respondent's February 22, 2021 email to Mother stated:

Hello [Mother],
I am a local psychotherapist, and I need to speak with you about [Daughter].
I know [School Counselor] has been connecting with you, but you and I need to speak together.
Please know that I'm a mom (grandmother at this point!), and I've had three teens of my own, plus I work with many many teens, so I am just wanting to help you.
Would you be available to speak tomorrow?

20. Respondent signed the email "Jane Martin, LPC, LCMHC."

21. The signature line of Respondent's unsolicited email also contained Respondent's address, cell phone number, website address, email address, a "Click here to order" link for a book Respondent wrote called "Kids: An Owner's Manual," and the following quote:

Someday, after we have mastered the winds, the waves, the tides, and gravity, we shall harness for the divine the energies and the power of love.

And then, for the second time in the history of the world, man will have discovered fire.

-Teilhard de Chardin

22. Mother responded by email to Respondent on February 28, 2021, expressing alarm, distrust, and incomprehension because Respondent was a complete stranger. However, Mother did agree to speak with Respondent by phone.
23. Respondent responded to the email the same day, and through an email exchange Respondent and Mother arranged to speak the same day.
24. Respondent and Mother did speak by phone on February 28, 2021.
25. Prior to speaking with Mother, Respondent had not met Daughter, had not assessed or evaluated Daughter, and had not received consent to diagnose or treat Daughter.
26. During the February 28, 2021 conversation, Respondent communicated to Mother Respondent's professional opinion that Daughter potentially suffered from four serious mental health conditions, namely eating disorder, bipolar disorder, disassociated identity disorder and being suicidal.
27. During the conversation, Respondent informed Mother that in Respondent's professional opinion, Daughter required immediate therapy.

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28. During the conversation, Respondent informed Mother that Respondent was a mandated reporter and was doing Mother a courtesy by coming to Mother directly rather than notifying DCF.
29. During the conversation, Respondent provided Mother with information about how to locate a therapist and told Mother that once she found a therapist for Daughter that Mother needed to provide Respondent with the name of the therapist. Respondent also told Mother that Daughter would need therapy for three days per week.
30. During the conversation, Respondent told Mother that Respondent would not contact DCF if the situation was resolved to Respondent's satisfaction.
31. When Mother told Respondent that Mother did not feel as though she were being given a choice about how to proceed, Respondent stated that it was Mother's responsibility as a parent to make the choice for Daughter and that if Daughter had rabies and didn't want treatment, it would be Mother's responsibility as a parent to get her treatment.
32. The February 28, 2021 phone call between Respondent and Mother lasted for approximately 30 minutes, during which time Mother repeatedly disagreed with Respondent about Respondent's assessment of Daughter, whom Respondent had never met.
33. After the phone call, Mother did not speak to or communicate with Respondent again; however, Respondent emailed Mother at least three more times.
34. In a subsequent email and after being confronted by two friends of Mother, Respondent told Mother, "I commit to you that I will not, and would never call DCF behind anyone's back! Please don't feel worried about that. I'm simply trying to make sure all children are ok, that's all."
35. In a final email to Mother on March 4, 2021, Respondent stated in part:

I imagine that this situation feels really hard for you, and I imagine especially that the element of taking away your free choice in how to raise your daughter would feel really violating. That matters to me very much, and I am doing my best to mitigate that.

Also, I'm in the position of being required to report – I even checked in anonymously with the Crisis Center and dcf [sic] to see if I have to and I do.

I know [Mother's friend] wants me to just drop it because of trusting her and her credentials, but that isn't really something that allows me to drop it.

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I'm hearing from [Mother's other friend] that the whole thing being unresolved is stressful, whereas I thought it would make more ease for you, and if that's true, that makes sense to me, so I'd like to resolve this one way or the other today. Could you let me know what you'd rather me do? I could call Dcf tonight, or if you'd rather, you can let me know that you are moving forward to getting a therapist for her. I do know that this can take a week or two sometimes, but if I know you are working on it, that's fine. I just need to know that you are.

I'm wondering too, if there are any concerns you have about that which I might address? Just checking to make sure you know it's free, it would be on zoom, there isn't anything like compelling you to use drugs. From my understanding, it's just a discussion one or two times probably, unless she wants to continue because of her free choice.

Also, do you have any questions about what dcf does? I could answer what I do know, and if I don't know, I can find out anything you are wondering.

- 36. Mother did not respond to Respondent's final email.
- 37. Respondent made a DCF report on March 8, 2021.
- 38. In the complaint she filed with OPR, Mother stated:

I am a black woman being told by a white woman, I've never met, that if I don't do as she says, she'll report my family to DCF! I can't begin to describe the rage I have felt watching my daughter feel victimized and helpless. This has eroded her sense of trust and belonging. Jane Martin has mishandled this situation in the most outrageous manner.

2023 Complaint

- 39. Between October and December 2022, Respondent provided counseling services to J.D. ("Client").
- 40. Client sought counseling services to help her improve her relationship with her teenage daughter, of whom she had sole physical and legal custody.
- 41. Client's daughter lived part-time with Client and part-time with Client's ex-husband.
- 42. Respondent billed Medicaid for services to Client and, in addition, directly billed Client an additional \$47 for four sessions, which Client paid through PayPal.
- 43. Respondent billed for "diagnosis and treatment plan" for Client, but informed OPR Investigator Petralia that she did not diagnose Client "except for use for insurance."

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44. Respondent met with Client alone for multiple sessions, met with Client and Client's daughter for multiple sessions, and also met alone with Client's daughter for multiple sessions.
45. In early January 2023, Client messaged to Respondent that she was discontinuing family therapy with Respondent because it was not a good fit.
46. In response on January 10, 2023, Respondent said in part: "I hope you can find a way to come into a respectful relationship with her somehow. Best Wishes. Jane."
47. In January 2023, Client was engaged in a 90-day mediation period to resolve custody issues with her ex-husband.
48. On January 31, 2023, Respondent authored an unsolicited letter addressed to "To Whom It May Concern" and sent it to either the mediator or Client's ex-husband's attorney, or both.
49. Respondent did not inform Client that she was sending the letter, nor did she ask Client's consent to send the letter.
50. The full text of the letter stated:

I am writing on behalf of [Client's Daughter], who I saw therapeutically and with both of her parents this past year.
I would like to offer my professional opinion that it would be in [Client's Daughter]'s best interest to live with her father, and for him to have full custody. I would hope that any visitation with her mother would be only with [Client's Daughter]'s full consent and not required of her in any way.
I have strong reasons for this opinion, but unless more detail is needed to ensure that [Client's Daughter] is fully in the custody of her father, I would prefer to respect the privacy of everyone involved. If more is needed please send a subpoena and I will be happy to cooperate.
51. When explaining to OPR Investigator Petralia her reason for sending the unsolicited letter into the mediation proceedings, Respondent claimed that she called DCF about reporting Client for emotional abuse but decided after that call that the "best way to help [Client's Daughter] and [Client] was to support her dad getting full custody."

Violation One: 3 VSA 129a(b)(2) Failure to conform to essential standards of acceptable and prevailing practice.

52. The State re-alleges and incorporates Paragraphs 2 through 51 above.
53. Vermont law requires Licensed Clinical Mental Health Counselors to conform to the essential standards of acceptable and prevailing practice.

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54. The Administrative Rules of the Board of Allied Mental Health Practitioners ("ARAMH") provide that the ethical codes of the National Board for Certified Counselors ("NBCC") and the American Counseling Association ("ACA") establish the standard of practice and fitness within the Allied Mental Health professions. *See* ARAMH Rule 6.6.
55. An NBCC Directive provides: "NCCs [National Certified Counselors] recognize that their behavior reflects on the integrity of the profession as a whole, and thus, avoid actions which can reasonably be expected to damage trust." NBCC 2016 Code of Ethics ("NBCC Code") at p.6.
56. Paragraphs 2 through 51 above demonstrate that Respondent failed to conform to essential standards of acceptable and prevailing practice by taking actions that could reasonably have been expected to damage trust, namely:
 - a. Providing professional opinions to Mother about Daughter, without informed consent and without having met or evaluated Daughter;
 - b. Directly contacting Mother without consent and threatening to report Mother to DCF if Mother did not resolve Respondent's concerns to Respondent's satisfaction;
 - c. Providing an unsolicited letter, without consent of Client, stating professional opinions that were contrary to her Client's interests to persons, other than her Client, who were conducting/participating in a custody mediation.
57. NBCC Code of Ethics requires counselors to "provide accurate reports based on direct experiences with individual(s) or documentation from other professionals when providing opinions." NBCC Code at p.5, Standard 43.
58. Paragraphs 2 through 38 above demonstrate that Respondent failed to conform to essential standards of acceptable and prevailing practice when she reported professional opinions to Mother about Daughter without having had direct experiences with Daughter, without documentation from other professionals, and based solely on information from third parties who were not professionals.
59. The 2014 ACA Code of Ethics ("ACA Code") requires a counselor to obtain informed consent from a client to enter a counseling relationship. *See* ACA Code at p.4, Standard A.2.a.
60. Paragraphs 2 through 38 above demonstrate that Respondent failed to conform to essential standards of acceptable and prevailing practice by failing to obtain informed consent from Daughter to provide mental health services and to formulate and provide professional opinions to Mother regarding Daughter's mental health and potential diagnoses.
61. The ACA Code requires a counselor to "take special care to provide proper diagnosis of mental disorders. Assessment techniques (including personal interviews) used to determine client care (e.g., locus of treatment, type of treatment, recommended follow-up) are carefully selected and appropriately used." ACA Code at p.11, Standard E.5.a.

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62. Paragraphs 2 through 38 above demonstrate that Respondent failed to conform to essential standards of acceptable and prevailing practice by providing potential diagnoses of Daughter to Mother without appropriately assessing Daughter.
63. The ACA Code requires a counselor to “recognize that culture affects the manner in which clients’ problems are defined and experienced. Clients’ socioeconomic and cultural experiences are considered when diagnosing mental disorders.” *Id.* at Standard E.5.b.
64. Paragraphs 2 through 38 above demonstrate that Respondent failed to conform to essential standards of acceptable and prevailing practice by failing to recognize and consider cultural and socioeconomic experiences when reporting to Mother the potential serious mental health diagnoses regarding Daughter.
65. The ACA Code requires counselors to “communicate information in ways that are both developmentally and culturally appropriate....” ACA Code at p.4, Standard A.2.c.
66. Paragraphs 2 through 38 above demonstrate that Respondent failed to conform to essential standards of acceptable and prevailing practice by failing to communicate information to Mother in a culturally appropriate manner.
67. The ACA Code requires counselors who are providing “counseling services to two or more persons who have a relationship, the counselor clarifies at the outset which person or persons are clients and the nature of the relationships the counselor will have with each involved person. If it becomes apparent that the counselor may be called upon to perform potentially conflicting roles, the counselor will clarify, adjust, or withdraw from roles appropriately.” ACA Code at p. 6, Standard A.8.
68. Paragraphs 39 through 51 demonstrate that Respondent failed to conform to essential standards of acceptable and prevailing practice by failing to clarify roles, engaging in conflicting roles, and failing to communicate with Client regarding Respondent’s letter to the mediator and/or Client’s ex-husband’s attorney.
69. The acts, omissions, and/or circumstances described above constitute grounds for discipline because Respondent has engaged in unprofessional conduct in violation of 3 V.S.A. §129a(b)(2).

Violation Two: 3 V.S.A. §129a(a)(26) Failing to maintain professional boundaries.

70. The State re-alleges and incorporates Paragraphs 2 through 51 above.
71. In Vermont, a Licensed Clinical Mental Health Counselor must maintain professional boundaries.

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- 72. Paragraphs 2 through 38 above demonstrate that Respondent failed to maintain professional boundaries with Mother and Daughter.
- 73. Paragraphs 39 through 51 demonstrate that Respondent failed to maintain professional boundaries when she provided her unsolicited professional opinion in the custody mediation process of her Client.
- 74. The acts, omissions, and/or circumstances described above constitute grounds for discipline because Respondent engaged in unprofessional conduct in violation of 3 V.S.A §129a(a)(26).

Violation Three: 3 V.S.A. §129a(a)(3) Failure to comply with provisions of federal or State statutes or rules governing the practice of the profession, incorporating 45 C.F.R. §164.502.

- 75. The State re-alleges and incorporates Paragraphs 2 through 51 above.
- 76. The Health Insurance Portability and Accountability Act of 1996 ("HIPAA") is a federal law which prohibits a health care provider from accessing or using a patient's protected health information for a purpose other than treatment, payment, or health care operations of the Facility, except when authorized by the individual or as required by law. *See* 45 C.F.R. §164.502.
- 77. Respondent is subject to HIPAA as a health care provider in her capacity as a LCMHC. *See* 45 C.F.R. § 160.103.
- 78. Paragraphs 39 through 51 demonstrate that Respondent violated federal law by revealing confidential client information to others without proper authorization or permitted purpose.
- 79. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent has engaged in unprofessional conduct in violation of 3 V.S.A. §129a(a)(3).

Violation Four: 3 V.S.A. §129a(a)(15) Failing to exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession.

- 80. Paragraphs 2 through 51 above are incorporated herein.
- 81. In Vermont, a Licensed Clinical Mental Health Counselor must exercise independent professional judgment in the performance of licensed activities when that judgment is necessary to avoid action repugnant to the obligations of the profession.
- 82. Paragraphs 2 through 38 above demonstrate that Respondent failed to exercise independent professional judgment in the performance of licensed activities when that judgment was necessary to avoid action repugnant to the obligations of the

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profession when she communicated professional opinions regarding Daughter's mental health to Mother without informed consent and without having assessed Daughter.

83. Paragraphs 2 through 38 above demonstrates that Respondent failed to exercise independent professional judgment in the performance of licensed activities when that judgment was necessary to avoid action repugnant to the obligations of the profession when she failed to respect Mother and Daughter's autonomy and used coercive strategies attempting to force Mother to take Daughter, whom Respondent had never met, assessed, or treated, to therapy.
84. Paragraphs 2 through 38 above demonstrates that Respondent failed to exercise independent professional judgment in the performance of licensed activities when that judgment was necessary to avoid action repugnant to the obligations of the profession when she communicated with Mother in a culturally insensitive and inappropriate manner.
85. Paragraphs 39 through 51 above demonstrate that Respondent failed to exercise independent professional judgment in the performance of licensed activities when that judgment was necessary to avoid action repugnant to the obligations of the profession when she provided an unsolicited letter in her Client's custody mediation process regarding her professional opinions about custody of Client's daughter without having obtained consent from Client.
86. The acts, omissions, and/or circumstances described above constitute grounds for discipline because Respondent has engaged in a pattern of unprofessional conduct in violation of 3 V.S.A §129a(a)(15).

Relief Requested

WHEREFORE, the State of Vermont respectfully requests that the Board revoke, suspend, reprimand, condition, or otherwise discipline Respondent's LCMHC license, number 068.0131439.

DATED this 3rd day of October, 2023.

STATE OF VERMONT
SECRETARY OF STATE

By: /s/ Jennifer B. Colin
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